

IN THE _____ COURT OF _____, ARKANSAS

DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle and Last name) DEFENDANT

**ORDER TO SEAL CONVICTION FOR POSSESSION OF CONTROLLED
SUBSTANCE OR COUNTERFEIT SUBSTANCE UNDER ACT 1460 OF
2013; A.C.A.16-90-1401, Et. Seq.**

Before the Court is the Petition of the Defendant to seal his/her record.
The Court finds and orders as follows:

1. The Defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:
☐ Possession of Controlled Substance A.C.A. §5-64-419; or
☐ Possession of Counterfeit Substance A.C.A. §5-64-441; or
2. Prior to sentencing an intake officer appointed by the Court, where
applicable, determined the Defendant had a drug addiction and
recommended the Defendant as a candidate for residential drug
treatment.
3. The Defendant was placed on probation by the Court. The terms and
conditions of the Order of Probation included the requirement that the
Defendant successfully complete a drug treatment program approved
by the Court and that the Defendant remain drug-free until successful
completion of the probation.
4. The Defendant has successfully completed all of the terms and
conditions of the Order of Probation.

IN THE _____ COURT OF _____, ARKANSAS

DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle and Last name) DEFENDANT

**ORDER TO SEAL CONVICTION FOR POSSESSION OF CONTROLLED
SUBSTANCE OR COUNTERFEIT SUBSTANCE UNDER ACT 1460 OF
2013; A.C.A.16-90-1401, Et. Seq.**

Before the Court is the Petition of the Defendant to seal his/her record.
The Court finds and orders as follows:

1. The Defendant was arrested on the _____ day of _____,
_____, and charged with the offense(s) of:
☐ Possession of Controlled Substance A.C.A. §5-64-419; or
☐ Possession of Counterfeit Substance A.C.A. §5-64-441; or
2. Prior to sentencing an intake officer appointed by the Court, where
applicable, determined the Defendant had a drug addiction and
recommended the Defendant as a candidate for residential drug
treatment.
3. The Defendant was placed on probation by the Court. The terms and
conditions of the Order of Probation included the requirement that the
Defendant successfully complete a drug treatment program approved
by the Court and that the Defendant remain drug-free until successful
completion of the probation.
4. The Defendant has successfully completed all of the terms and
conditions of the Order of Probation.

5. Defendant has paid all court costs unless payment has been excused by the Court.
6. Defendant has repaid all Court ordered restitution.
7. Defendant has had no more than one (1) prior felony before this conviction.
8. ☐ The Defendant has completed all of the requirements of his or her sentence, or
☐ It has been at least one (1) year since the Court denied a Petition to Seal for this conviction.
9. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. §16-90-1419.
10. ☐ Defendant has no pending felony charges in any state or federal court; or
☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

11. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq).
12. The defendant ☐ **HAS** or ☐ **HAS NOT** been rehabilitated.
13. The Court has considered the factors contained in A.C.A. §16-90-1415(c) and finds that the granting of this Petition is in the best interests of the State of Arkansas and of the Defendant.

5. Defendant has paid all court costs unless payment has been excused by the Court.
6. Defendant has repaid all Court ordered restitution.
7. Defendant has had no more than one (1) prior felony before this conviction.
8. ☐ The Defendant has completed all of the requirements of his or her sentence, or
☐ It has been at least one (1) year since the Court denied a Petition to Seal for this conviction.
9. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A. §16-90-1419.
10. ☐ Defendant has no pending felony charges in any state or federal court; or
☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

11. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq).
12. The defendant ☐ **HAS** or ☐ **HAS NOT** been rehabilitated.
13. The Court has considered the factors contained in A.C.A. §16-90-1415(c) and finds that the granting of this Petition is in the best interests of the State of Arkansas and of the Defendant.

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to Seal the above referenced felony conviction(s) pursuant to A.C.A. §14-90-1407 should be, and hereby is GRANTED.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information Center, the Administrative Office of the Courts, the prosecuting attorney, the arresting agency, and both the city attorney and District Court Clerk if applicable, and. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB _____ FBI No. (if known) _____

IT IS, THEREFORE, by the Court, ORDERED that the Petition of the Defendant, _____, to Seal the above referenced felony conviction(s) pursuant to A.C.A. §14-90-1407 should be, and hereby is GRANTED.

IT IS FURTHER ORDERED that the Clerk is directed to mail or transmit a certified copy of the ORDER to the Arkansas Crime Information Center, the Administrative Office of the Courts, the prosecuting attorney, the arresting agency, and both the city attorney and District Court Clerk if applicable, and. Each of those agencies shall comply with the requirements of A.C.A. §16-90-1413 as it pertains to them.

Judge

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER IDENTIFICATION OF THE DEFENDANT IN THE STATE AND NATIONAL RECORD SYSTEMS

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB _____ FBI No. (if known) _____